

M/s Raja Ram Ispat Private Ltd. v. State of U.P. and others

Allahabad High Court · Division Bench · 2 June 2014 · Writ-C No. 31760 of 2014 · **Writ disposed of; petitioner relegated to Clause 6.5 complaint.**

HEADNOTE

A writ seeking correction of a post-disconnection electricity bill of Rs.1.45 crore and sick-unit rebate was not decided on merits. The Division Bench held that Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer to resolve bill-accuracy disputes, and directed the petitioner to make a representation/complaint under Clause 6.5 for a reasoned speaking order in accordance with law, expeditiously.

FACTUAL SUMMARY

The petitioner, M/s Raja Ram Ispat Private Ltd., sought a writ of mandamus commanding the respondents to correct an electricity bill of Rs.1,45,86,024 for its unit and to extend sick-unit rebate by reducing penalty and other charges. Permanent disconnection had been effected on 25 November 2013, when the outstanding stood at Rs.78,05,508. Counsel submitted that the demand had nearly doubled within six months of disconnection. The controversy, as presented, turned on the accuracy of the post-disconnection bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy dispute before Executive Engineer

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer to resolve disputes regarding accuracy of bills. Where the writ challenge to a post-disconnection demand raises questions of fact, the consumer must pursue that complaint/representation under Clause 6.5; the authority is to decide it by a reasoned speaking order in accordance with law, expeditiously. The High Court will not adjudicate the bill on a writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POST-DISCONNECTION BILL OF RS.1,45,86,024 WAS ACCURATE AS AGAINST RS.78,05,508 OUTSTANDING AT PERMANENT DISCONNECTION ON 25.11.2013

Relegated as a question of fact to the Executive Engineer under Clause 6.5(b). ¶ 1

NOT DECIDED — ENTITLEMENT TO SICK-UNIT REBATE AND REDUCTION OF PENALTY AND OTHER CHARGES

Prayer not examined on merits; writ disposed of only with a Clause 6.5 direction. ¶ 1